

those answers. The Court vacates the Clerk's May 11, 2026, minute order, and orders that the answers be deemed filed as of May 4, 2026.

None of Plaintiffs' arguments to the contrary persuade the Court otherwise.

There were numerous other assignments of error by the moving parties. The Court need not address the same given the disposition noted.

A case management conference is set for November 2, 2026, at 9:00 a.m., in Department 6.

3. CU0001483 Susan Gabrielle vs. Phillip G. Conlon, Jr.

Appearances are required by the parties to discuss the results of the property inspection and status as to the sale of the property.

4. CU0000090 Matthew Palleschi, et al. v. Daniel Fraiman Construction, Inc., et al.

Motion for Reconsideration

Defendants Daniel Fraiman Construction, Inc. and Daniel Fraiman's motion for reconsideration and immediate stay is denied.

Legal Standard

Any affected party may make an application to the same judge or court to reconsider the matter and modify, amend, or revoke the prior order when an application for an order made to a judge or a court is refused in whole or in part, or granted, or granted conditionally, or on terms within 10 days after service upon the party of written notice of entry of the order and *based upon new or different facts, circumstances, or law*. Code Civ. Proc. § 1008(a) (emphasis added). Contentions that the court has made an error of law or refused to consider evidence are not new facts as required for a motion under Code of Civil Procedure section 1008. *Jones v. P.S. Development Co., Inc.* (2008) 166 Cal.App.4th 707, 724. "New facts" is defined as facts which were not available to the party at the time of the hearing. *In re Marriage of Herr* (2009) 174 Cal.App.4th 1463, 1468. To prevail on a motion for reconsideration based on new facts, a party must provide a satisfactory explanation for failing to offer the evidence in the first instance. *New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212. The new facts offered must be accompanied by a showing of strong diligence in discovery and bringing the new facts; absent a strong showing of diligence, the motion will be denied. *Forrest v. Department of Corporations* (2007) 150 Cal.App.4th 183, 202. Where the motion for reconsideration brings no valid new fact to the merits of the underlying motion, and merely raises a collateral matter, reconsideration will be denied. *Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.